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Tentative Ruling

Re: ***LENDonate CA LLC v Parents and Addicts in Need***
Superior Court Case No. 25CECG02575

Hearing Date: May 13, 2026 (Dept. 502)

Motion: By Plaintiff for Summary Judgment, or in the Alternative,
Adjudication

Tentative Ruling:

To grant. (Code Civ. Proc., § 437c, subd. (c).) Plaintiff is to submit a proposed judgment consistent with this ruling within seven days of service of the minute order by the clerk.

Explanation:

This motion arises out of a complaint for breach of contract and recovery of personal property. A trial court shall grant summary judgment where there are no triable issues of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) Where a plaintiff moves for summary judgment, the plaintiff has the burden to produce admissible evidence as to each element of a cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).)

To show a breach of contract, the plaintiff must demonstrate the existence of a contract, performance by plaintiff or an excuse for nonperformance, breach by the defendant, and damages. (*First Commercial Mortgage Co. v. Reece* (2001) 89 Cal.App.4th 731, 745.) Here, plaintiff has demonstrated the existence of a contract based on the loan agreement. (UMF Nos. 1-3.) Plaintiff has demonstrated its performance by disbursing the funds. (UMF Nos. 8-9.) Plaintiff has demonstrated defendant's default by failure to make payments after the extension of the maturity date. (UMF No. 16.) Plaintiff has demonstrated damages totaling \$62,233.53. (UMF Nos. 18, 26-35.)

For an action to recover personal property, "judgment for the plaintiff may be for the possession or the value thereof." (Code Civ. Proc., § 667.) Here, plaintiff has demonstrated its entitlement to possession of the collateral pursuant to the terms of the loan agreement. (UMF Nos. 4-5.)

Plaintiff has demonstrated it is entitled to attorney's fees and costs pursuant to the terms of the loan agreement. (UMF No. 15.) Plaintiff has also demonstrated the amount of attorney's fees and costs in this matter. (UMF Nos. 26-34.)

Plaintiff has met its burden. Defendant has not apposed this motion and therefore has not presented any evidence of any triable issues of fact. As such, the court grants the motion for summary judgment.

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